

Court No. - 54

Case :- APPLICATION U/S 482 No. - 39741 of 2010

Petitioner :- Smt. Kalpna Khanna

Respondent :- State Of U.P.And Another

Petitioner Counsel :- Nishant Mehrotra,Pranjal Mehrotra

Respondent Counsel :- Govt.Advocate

Hon'ble Rajesh Dayal Khare,J.

Heard learned counsel for the applicant, Sri Ram Kumar Sharma holding brief of Sri Pankaj Kumar Shukla, learned counsel for opposite party no. 2 and learned A.G.A. for the State respondent.

The present 482 Cr.P.C. application has been filed for quashing of proceedings of Special Sessions Trial No. 57/2006 pending before the Special Judge, E.C. Act, Moradabad.

It is contended by learned counsel for the applicant that the sole allegation against the applicant is that seal of the meter was found tempered (broken). It is further contended that as per Clause 8.1 (b) (ii) of the Electricity Supply Code 2005, no theft case can be booked for mere breakage of window glass or old seal of the energy meter. It is thus contended that pursuant to the aforesaid provisions of the Electricity Supply Code 2005, no F.I.R. could have been lodged against the applicant. It is next argued that the F.I.R. was lodged by the Junior Engineer when in fact as per the Government Order No. 2635/24-P-3-204 dated 5th October, 2004, only the Assistant Engineer is competent to lodge the F.I.R. under Section 135 of the Electricity Act.

Sri Ram Kumar Sharma, counsel for opposite party no. 2 prays for and is granted two weeks' time to file counter affidavit. As prayed by the learned counsel for the applicant one week thereafter is granted for filing rejoinder affidavit.

List thereafter along with the record of Application under Section 482 Cr.P.C. No. 6194/2010.

Till the next date of listing no coercive action shall be taken against the applicant in the aforesaid case.

Order Date :- 3.1.2011

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